

SOLAPUR MUNICIPAL CORPORATION, SOLAPUR

Hutatma Smruti Mandir (Air-Conditioned) Theatre Terms and Conditions for Renting the Theatre

- 1)** Total seating capacity is 782. However, the theatre should be inspected physically before making the booking. The reserved seats for the censor/sensor are A-7 and A-8. There are no seats reserved for the Municipal Corporation. In case the electricity supply is interrupted, a generator facility is available. However, the air-conditioning system will remain switched off at that time. No concession in the rent will be given for this. For the generator, the organizer must pay the diesel charge at the rate of Rs. ____ per hour. [The amount is not legible in the source PDF.]
- 2)** No concession/discount in the rent will be given to anyone. To obtain a refund of the security deposit paid online, an application must be submitted to the office along with the bank details of the person in whose name the booking has been made. Charges other than the rent, depending on actual usage, will be recovered in cash or from the security deposit.
- 3)** Only as many persons as there are seating arrangements in the theatre will be admitted as spectators. Additional chairs cannot be placed inside the theatre.
- 4)** The Hutatma Smruti Mandir Theatre may be used only for theatrical performances, cultural programmes and public education. The decision of the Hon'ble Municipal Commissioner regarding which programmes are included under public education and cultural programmes shall be final and binding.
- 5)** The applicant shall be responsible for completing the performance within the prescribed time and must vacate the theatre within the allotted time. If this is not done, the Manager shall have the right to stop the programme. For every additional hour, or part thereof, beyond the prescribed time, the applicant shall pay an additional charge of Rs. 2,500 + GST. If the amount is not paid, it shall be recovered from the security deposit. However, if another programme is scheduled in the next session, additional time cannot be granted. The organizer shall be responsible for completing the programme on time.
- 6)** The applicant must book the theatre online. The security deposit and hall rent must be paid online. This booking is only for the hall; rent for equipment/materials actually used during the programme or for other usage must be paid separately. Online booking will commence three months in advance for each quarter, i.e. booking for each quarter will start three months before the beginning of that quarter.
- 7)** If the applicant has to cancel the booked date due to any difficulty, the rent may be refunded as follows:
 - If cancellation is communicated 2 months before the performance date: 90% of the rent will be refunded.
 - If cancellation is communicated 1 month before the performance date: 80% of the rent will be refunded.
 - If cancellation is communicated 7 days before the performance date: 50% of the rent will be refunded.
 - If the programme is cancelled 7 days or less before the performance date, the rent will not be refunded. Only the security deposit will be refunded.
- 8)** After a date has been allotted to an organization, dates cannot be mutually exchanged. The Hon'ble Commissioner shall have the authority to approve or reject an application for exchanging dates. No reason is required to be given for such decision.
- 9)** If, for any reason or difficulty, an applicant is unable to use the theatre on the scheduled date for the scheduled programme, the rent paid by the applicant will not be refunded. However, if permission has to be cancelled due to government reasons, another date after the original date will be allotted for the performance. If the applicant expresses such a desire, the rent already paid will be refunded.
- 10)** If the performance is held on Saturday, Sunday or a public holiday, an additional charge of Rs. 500 per performance shall be levied.
- 11)** Responsibility for compliance with all labour laws and government rules shall rest with the applicant. Before presenting the programme, the following permits/licenses must be shown to the Theatre Manager at least 8 days before the performance:

- 1) Permission from the Additional District Magistrate, Solapur.
- 2) Written permission from the concerned tax authority if entertainment tax is applicable to the programme.
- 3) Permission from the Additional District Magistrate for sale of tickets.
- 4) Performance licence obtained from the Additional District Magistrate.
- 5) Loudspeaker-related licence from the Additional District Magistrate.
- 6) Receipt showing payment of the Municipal Corporation theatre tax and the licence/permission relating to putting up advertisement boards.

If the required permits are not available, the performance will not be allowed. Full responsibility in this regard shall rest with the persons concerned with the performance.

12) From the time the theatre is handed over to the applicant until it is vacated and returned, the applicant shall be responsible for ensuring that no damage or deterioration occurs. If any damage occurs to the building, furniture, fittings, painting, electrical equipment or other materials/facilities, the applicant shall pay the compensation determined by the Hon'ble Municipal Commissioner or the Manager acting on his behalf. This amount may also be recovered from the security deposit.

13) If the performance held in this theatre infringes any rights of another person, the applicant shall be responsible for the same.

14) The permission granted to the applicant for use of the theatre shall be limited to the stage, backstage/curtain area, auditorium and the routes and premises connected with these areas. This permission does not give the applicant or any other person associated with the programme the right to enter other parts of the building.

15) The theatre has a furnished stage, backstage/curtain area, sound system, lighting system and air-conditioning system. A generator is provided as an alternative arrangement in case of power failure. The theatre's sound system is suitable for plays and lectures; for all other programmes, organizers are advised to use an external sound system. Efforts will be made to keep all these facilities operational. However, if a failure occurs due to unavoidable circumstances, the Municipal Corporation shall not be responsible for it.

16) The Municipal Corporation shall not be responsible for any belongings of organizers, artists or spectators that are lost or stolen during the programme.

17) Spitting, smoking, creating dirt, disorderly or objectionable behaviour, and damaging any property in the theatre are prohibited. If any such damage is nevertheless caused, the applicant shall be responsible for paying compensation. The penalty determined by the Hon'ble Commissioner or the Manager acting on his behalf shall apply.

18) The applicant shall arrange police assistance, as necessary, for traffic control during the programme at the theatre. If the applicant has not made such arrangements and police assistance becomes necessary for any reason, the Manager will call for police assistance, and the applicant shall bear the cost. The cost shall be recovered from the security deposit.

19) Subject to availability, the theatre may be made available for dress/rehearsal practice at times other than the regular performance timings. However, air-conditioning will not be provided during this time. A charge of Rs. 2,500 + GST will be levied for every three-hour rehearsal. This amount must be paid online by the applicant. During rehearsal, no persons other than office bearers of the concerned organization and related persons shall be allowed into the auditorium. The combined number of such persons shall not exceed 35.

20) The Theatre Manager shall manage the theatre and its day-to-day operations under the control of the Hon'ble Commissioner.

21) The Hon'ble Commissioner has the authority to modify or correct these rules or add further rules without giving notice. Such changes shall be binding on the agencies using the theatre.

22) If any dispute arises between the applicant and the Manager regarding the interpretation of these rules or any matter relating to use of the theatre, the order of the Hon'ble Municipal Commissioner shall be final and binding on both parties. The Hon'ble Commissioner shall also have the right to refuse the theatre without assigning any reason.

23) Online booking can be made for the next 90 days.

- 24)** If two persons make online bookings for the same slot, priority shall be given to the booking that was made first, based on the time of booking.
- 25)** The online booking payment shall be verified/reconciled with the bank on the following day. The booking will be confirmed only after such verification; otherwise, the booking will be cancelled.
- 26)** The organizer should physically inspect the theatre before making the booking and verify the available equipment/materials. If any additional equipment/material is requested at the last moment, it will not be provided.
- 27)** These rules shall be subject to the jurisdiction of Solapur.
- 28)** The organizer shall be responsible for completing the programme within the allotted time of the booked session.
- 29)** The organizer must read all the terms and conditions before making an online booking.

Commissioner

Solapur Municipal Corporation, Solapur

Translation note: This English version is a direct translation of the supplied Marathi PDF. No substantive condition has intentionally been omitted. Where the source text is unclear or the amount is not readable, that limitation is explicitly marked rather than guessed.